

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-28

WAY INTERGLOBAL NETWORK, LLC

COMPLAINANT,

v.

SHENZHEN UNIFELIX SCM LIMITED

RESPONDENT.

UNOPPOSED MOTION TO EXTEND BRIEF AND OTHER DEADLINES

COMES NOW, Complainant, WAY INTERGLOBAL NETWORK, LLC, by its respective undersigned counsel, and pursuant to 46 C.F.R. §§ 502.69 and 502.102, hereby files its Unopposed Motion to Extend Brief and Other Deadlines (“Motion”) and in support thereof states as follows:

1. On February 8, 2023, a Scheduling Order was entered in this matter which set forth the following deadlines relevant to this Motion:

- June 19, 2023 Depositions completed.
- June 19, 2023 Close of all discovery.
- July 10, 2023 Parties exchange exhibit list and deposition designations.
- July 17, 2023 Complainant’s brief, proposed findings of fact, and appendix.
- August 14, 2023 Respondents’ opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.

- August 28, 2023 Complainant's reply brief and responses to proposed findings of fact.

2. This Motion is timely as it is filed before the expiration of the above deadlines.

3. While the parties are respectful of the deadlines set forth in the Scheduling Order, and have attempted to abide by all stated deadlines, it does not appear that the parties will be able to complete discovery by the stated deadline, which means that they will not be able to adequately present their case in their respective briefs.

4. The parties have propounded and responded to written discovery but have not yet taken depositions. Complainant has produced 303 pages of documents and Respondent has produced 885 pages of documents as of the date of this Motion, with additional production anticipated.

5. Complainant has retained and timely disclosed its expert witness, who is reviewing the document production from Respondent and will produce a report.

6. Respondent has timely disclosed its rebuttal expert.

7. Given that Complainant (and its expert) is still reviewing Respondent's documents, and that it is reviewing its file and may produce additional documents responsive to Respondent's discovery requests, Complainant respectfully requests a 120-day extension of the deadlines below (with the exception of the last deadline where a further extension is requested so that it falls the week after the Christmas holidays):

- June 19, 2023 Depositions completed (extension requested to October 17, 2023).
- June 19, 2023 Close of all discovery (extension requested to October 17, 2023).

- July 10, 2023 Parties exchange exhibit list and deposition designations (extension requested to November 7, 2023).
- July 17, 2023 Complainant's brief, proposed findings of fact, and appendix (extension requested to November 14, 2023).
- August 14, 2023 Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix (extension requested to December 12, 2023).
- August 28, 2023 Complainant's reply brief and responses to proposed findings of fact (extension requested to January 5, 2024).

8. 46 C.F.R. § 502.102(a) provides: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause. Motions must set forth the reasons for the request and be received at least seven (7) days before the scheduled filing date. Motions filed less than seven (7) days before the scheduled filing date may be considered where reasonable grounds are found for the failure to meet this requirement." This Motion is brought at least seven days before the expiration of the deadlines, and Complainant has shown good cause to grant the Motion to allow the parties to complete depositions and adequately present their respective briefs.

9. As referenced in the Scheduling Order, "Trial courts 'have both the power and the duty to take measures to control their dockets and to ensure that counsel properly prepare cases scheduled for trial so that they can be tried and decided rather than continued and rescheduled.' *Hornbuckle*, 732 F.2d at 1237..." *United States v. Hughey*, 147 F.3d 423, 430-31 (5th Cir. 1998). "The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir.

1998).” *One Banana North America Corp., v. Hapag-Lloyd Ag and Hapag-Lloyd (America) LLC*, 2022 FMC LEXIS 453, *2 (granting joint request for a revised schedule). *See, also, One Banana North America Corp., v. Hapag-Lloyd Ag and Hapag-Lloyd (America) LLC*, 2022 FMC LEXIS 259 (granting motion to extend deadlines).

10. Pursuant to 46 CFR § 502.71(a), counsel for Complainant and counsel for Respondent discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement, on May 31, 2023 by telephone. Respondent agrees to the relief requested in this Motion.

WHEREFORE, Complainant, WAY INTERGLOBAL NETWORK, LLC, prays that its Unopposed Motion to Extend Brief and Other Deadlines be granted.

MCLEOD BROCK LAW, PLLC



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Attorneys for Complainant, Way Interglobal Network, LLC

CERTIFICATE OF SERVICE

I hereby certify that I have this 6th day of June, 2023, served the foregoing document upon Theodore H. Adkinson, Esq. (THA@tradeandcargo.com) by electronic mail, with a courtesy copy to judges@fmc.gov.



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